

insolvent at the time (*e*), or substantially indebted (*f*), or the object of defeating creditors may be inferred from a person settling his whole property, real and personal, and so depriving himself of the means of paying an existing debt (*g*), a voluntary deed, though supported by the meritorious consideration of providing for a wife or child (*h*), and though made in pursuance of a *verbal* ante-nuptial promise (*i*), and though it was a settlement of the purchase-money, or of an annuity in lieu of * purchase- [78] money upon a sale (*a*), is fraudulent as against creditors, (though only general creditors without any lien (*b*), or creditors under a voluntary post obit bond (*c*)). But a deed is not impeachable merely because it comprises the whole of a person's property (*d*), or merely because it is voluntary (*e*), and although it be upon the face of it voluntary, it may be shewn by extrinsic evidence to have been founded on valuable consideration (*f*), or to have been otherwise *bonâ fide* (*g*). And on the other hand, a deed, though it was founded on *valuable consideration*, even in consideration of marriage (*h*), may, if it was executed for the purpose of *defrauding* creditors, be declared to be void (*i*).

(*e*) *Barrack v. McCulloch*, 3 K. & J. 110; *Lush v. Wilkinson*, 5 Ves. 384; *Whittington v. Jennings*, 6 Sim. 493; *French v. French*, 6 De G. M. & G. 95; *Acraman v. Corbett*, 1 J. & H. 410; *Crossley v. Elworthy*, 12 L. R. Eq. 158; *Taylor v. Coenen*, 1 Ch. Div. 636.

(*f*) *Townsend v. Westacott*, 2 Beav. 340; 4 Beav. 58; *Martyn v. Macnamara*, 2 Conn. & Laws. 554, *per Cur.*; *Holmes v. Penney*, 3 K. & J. 99; *Cornish v. Clark*, 14 L. R. Eq. 184; and see *Richardson v. Smallwood*, Jac. 557; *Skarf v. Soulbey*, 1 Mac. & G. 375.

(*g*) *Smith v. Cherrill*, 4 L. R. Eq. 300; and see *Spirett v. Willows*, 3 De G. J. & S. 303.

(*h*) *Barrack v. McCulloch*, 3 Kay & J. 110; and see *Lush v. Wilkinson*, 5 Ves. 384.

(*i*) *Crossley v. Elworthy*, 12 L. R. Eq. 158.

(*a*) *French v. French*, 6 De G. M. & G. 95; *Neale v. Day*, 4 Jur. N. S. 1225.

(*b*) *Reese River Company v. Atwell*, 7 L. R. Eq. 347.

(*c*) *Adames v. Hallett*, 6 L. R. Eq. 468.

(*d*) *Alton v. Harrison*, 4 L. R. Ch. App. 622; *Allen v. Bonnett*, 5 L. R. Ch. App. 577; [*Ex parte Games*, 12 Ch. D. 314.]

(*e*) *Holloway v. Millard*, 1 Mad. 414; *Thompson v. Webster*, 4 Drew. 632; *Holmes v. Penney*, 3 K. & J. 90.

(*f*) *Gale v. Williamson*, 8 M. & W. 540.

(*g*) *Thompson v. Webster*, 4 Drew. 628; 4 De G. & J. 600.

(*h*) *Bulmer v. Hunter*, 8 L. R. Eq. 46; *Colombine v. Penhall*, 1 Sm. & G. 228.

(*i*) *Twyne's case*, 3 Rep. 80, a; *Bott v. Smith*, 21 Beav. 511; *Acra-*